

S LINE BROKERAGE INC.

TRANSPORTATION BROKERAGE AGREEMENT

This Transportation Brokerage Agreement ("Agreement") is made as of Mo , Day , 20 , between S LINE BROKERAGE, INC., a Federally Licensed Freight Brokerage, with its principal place of business located at 9972 PHOENICIAN WAY, SACRAMENTO, CA 95829-8006 (hereinafter referred to as "S LINE BROKERAGE" or "Broker"), and _____, with its principal place of business _____ located _____ at _____

[(Street)(City)(State)(Zip)] (hereinafter referred to as "CARRIER").

RECITALS

A. S LINE BROKERAGE is a Freight Broker of general commodities duly licensed and authorized by, without limitation, the Federal Motor Carrier Safety Administration pursuant to Docket No. MC- 1496045 to engage in operations in Interstate or Foreign commerce, as a Broker, arranging for transportation of freight/cargo for its customers, between and among points in the United States by Motor Vehicle with For-Hire Motor Carriers.

B. CARRIER is a Motor Carrier and/or Common Carrier of Property duly licensed and authorized by the FMCSA pursuant to DOT/MC # _____, and other applicable State and/or Federal Governmental Agencies to engage in operations and provide services in Interstate and Foreign Commerce without limitation in the transportation of freight/cargo of a type for which S LINE BROKERAGE is authorized to act as a Broker as set forth above.

C. The Parties do hereby enter into this Agreement pursuant to 49 USC §14101(b) for the purposes of providing and receiving specified services under specified rates and conditions, and under which the Parties intend to and hereby agree to waive certain rights and remedies permitted to be waived under the Interstate Commerce Act, (Motor Carrier Act) and Title 49 of the United States Code, and/or of California statutes and regulations applicable to carriers, common carriers and/or freight forwarders under, without limitation, the California Civil Code, Public Utilities Code, Uniform Commercial Code, and the Vehicle Code, and regulations issued thereunder (including the exclusive remedies therein for breach of contract) to the extent allowed by law and to the extent that any provisions therein are inconsistent with any of the provisions of this Agreement.

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D. Unless otherwise apparent from the context in which the term is used, the term "Party" shall refer to either S LINE BROKERAGE or CARRIER.

E. The term "Parties" as used herein shall refer to both S LINE BROKERAGE and CARRIER.

F. Unless otherwise apparent from the context in which the term is used, the terms "Property", "Cargo," "Freight", "Goods", and "Commodities" are used interchangeably in this Agreement.

G. "Transportation Services" shall have the meaning used in 49 USC §13102(23) as it pertains to the movement of Property, and includes the pickup, transfer, and delivery, of property, and services related to the movement of such property as per 49 USC §13102(23)(B).

NOW THEREFORE, based upon the foregoing RECITALS, which are incorporated herein as if fully set forth below, and in consideration of the mutual covenants & agreements contained herein, the Parties mutually agree as follows:

TRANSPORTATION SERVICES

1. CARRIER agrees to provide S LINE BROKERAGE with Transportation Services at such time and place as may from time to time be required by S LINE BROKERAGE and/or S LINE BROKERAGE customers, and without any guarantee of a minimum amount of business.

TERM OF AGREEMENT

2. This Agreement shall take effect as of the date first above written and shall remain in effect one year thereafter until terminated by either Party giving not less than thirty (30) days written notice to the other Party; provided this Agreement may be terminated for cause by upon five (5) days written notice to CARRIER.

BILLS OF LADING AND DELIVERY RECEIPTS

3. CARRIER shall issue a Uniform Standard Bill of Lading for Property It receives for Transportation Services under this Agreement and shall be liable to the person entitled to recover under the Bill of Lading for loss of or damage to such Property. Carrier shall submit an original copy of the Receipt to S LINE BROKERAGE evidencing delivery of the shipment, unless otherwise instructed by S LINE BROKERAGE, in which case Carrier shall retain custody of the Receipt and provide it to S LINE BROKERAGE upon request. The liability imposed by this paragraph is for the actual loss or injury to the Property. Failure to issue a Bill of Lading does not

Initials Carrier Representative: _____

affect the liability of CARRIER; The Freight/Cargo transported by CARRIER will not move under limitations of liability or any release rates.

4. CARRIER shall not issue and/or execute a Bill of Lading containing terms and/or conditions imposing Liability upon S LINE BROKERAGE. Any terms on any Bill of Lading which conflict with this contract are Null and Void and superseded by this contract.

5. Freight/Cargo shall be picked up at point of origin and delivered to point of destination as specified by S LINE BROKERAGE and/or S LINE BROKERAGE's customer(s), and delivery shall be made by CARRIER as specified in the Bill of lading or other shipping documents which shall be picked up with the Freight/Cargo and shall be completed upon delivery at point of destination to reflect the fact of delivery. CARRIER shall provide and submit to S LINE BROKERAGE completed Bill of Lading, Delivery Receipt, Freight Bill, and other transportation documents within fifteen (15) days of the delivery of each shipment evidencing good delivery of the Freight/Cargo.

6. In the event that CARRIER's personnel are not allowed or afforded an opportunity to view and/or examine the Goods in order to ascertain the condition of those Goods prior to loading on CARRIER's equipment, CARRIER's personnel shall immediately notify S LINE BROKERAGE and await instructions prior to transporting the shipment and shall note on the Bill of Lading that they were not allowed or afforded an opportunity to view and/or examine the Goods shipped.

CARRIER'S RESPONSIBILITY FOR THE CARGO

7. CARRIER's exclusive responsibility for loss of or damage to any Cargo/Freight shall commence at the time the cargo/freight is loaded upon CARRIER's equipment at the point of origin and shall continue until said Cargo/Freight is delivered to the designated consignee at destination, or to any intermediate stop off point, and shall include the period of and for performing those Transportation Services Included in 49 USC §13102(23)(B).

8. CARRIER agrees to transport the Commodities to the specified destination with reasonable dispatch (defined as the length of time that it would customarily and ordinarily take to transport a like shipment), unless a specified delivery date(s) and/or time(s) is communicated to CARRIER prior to pick up of any individual Shipment and/or if the Bill of Lading delineates (a) specified date(s) and/or time(s), in which event the delivery shall be at such specified date and/or time. CARRIER hereby assumes all liability for non-delivery within or at the specified date(s) and/or time(s) communicated to CARRIER prior to pick up and/or delineated on a Bill of Lading at the time of pick up. CARRIER hereby assumes all liability for Cargo loss and damage while such commodities are in CARRIER'S custody and control. No released value conditions, whether stated in CARRIER's rates or otherwise, shall apply against S LINE BROKERAGE or its customers.

9. In the event branded or labeled Goods are damaged, S LINE BROKERAGE's customers may determine, within their sole discretion, and subject to a reasonableness standard, whether the Goods may be salvaged, and if salvageable, the value of such salvage. Any salvage receipts shall be credited against S LINE BROKERAGE's customers' claims against CARRIER. S LINE BROKERAGE's customers shall have the right to remove all identifying marks or labels when CARRIER pays S LINE BROKERAGE or S LINE BROKERAGE's customers for the full value of the damaged Goods and requests possession of the Goods for salvage. Alternatively, in the discretion of S LINE BROKERAGE or its customers, the Goods shall be permanently marked as "damaged" or a similar notation, without debiting or otherwise charging S LINE BROKERAGE's customers on account of such notations.

10. CARRIER shall process all claims for loss and damage to Cargo in a timely fashion, which shall include but not be limited to the following actions: (i) within fifteen (15) days after receipt of a claim, CARRIER shall acknowledge in writing to S LINE BROKERAGE and the claimant that the claim has been received and tender said claim to their Cargo Liability Insurance Carrier; and (ii) within ninety (90) days after receipt of a claim, CARRIER shall provide written notification to the claimant and to S LINE BROKERAGE that a claim will be paid and/or that a claim is denied in whole or in part with a specification of the reasons for any such denial.

INSURANCE

11. CARRIER agrees to procure and maintain Cargo Insurance, with an insurance company with at least a "B++" AM Best rating, with the following minimum coverage limits to insure S LINE BROKERAGE and its customers and to compensate the persons/entities who are legally entitled to any recovery for Cargo loss and/or damage.

Bobtails: \$100,000.00

Containers, Trailers & Vans: \$100,000.00

S LINE BROKERAGE shall be named as a loss payee on such policy. CARRIER shall cause its Insurance Carrier to forward forthwith to S LINE BROKERAGE a standard Certificate of Insurance which Certificate shall require that the Insurance Carrier give S LINE BROKERAGE thirty (30) days written notice prior to the cancellation of such policy.

12. CARRIER agrees to procure and maintain General Liability & Truckers Liability insurance, with an insurance company with at least a "A" AM Best rating. Required Limits for General Liability are \$1,000,000 Combined Single Limit for Bodily Injury & Property Damage with a \$2,000,000 annual aggregate. Required Limits for Truckers Liability are \$1,000,000 Combined Single Limit for Bodily Injury & Property Damage each occurrence. S LINE BROKERAGE shall be named as an additional insured on such policy with S LINE BROKERAGE receiving an additional insured endorsement together with the certificate of insurance. The certificate of insurance and additional insured endorsement will provide S LINE BROKERAGE with 30 days written notice of cancellation prior to any cancellation of said policy.

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RATES

13. CARRIER's compensation for any specific shipment or shipment may be orally agreed to between the Parties, and however the compensation shall (must) be subsequently confirmed by S LINE BROKERAGE to CARRIER in a writing ("the Rate Confirmation Sheet"), which can be sent by facsimile, e-mail, text message, or by other electronic means. The Rate Confirmation Sheet shall state the Contract Rate, identify the pickup date, origin, destination, rate and any other instructions or requirements regarding the shipment of the Cargo.

14. CARRIER agrees that any interstate or intrastate tariffs, released value clauses or rates, or other liability limitations which now or in the future may exist in CARRIER's schedules or tariffs shall not apply to transportation provided by CARRIER to S LINE BROKERAGE and/or S LINE BROKERAGE's customers during the term of this Agreement unless they are expressly stated in this Agreement. By way of this Agreement, CARRIER's tariffs are specifically excluded from and will not be incorporated into this Agreement.

15. All Rate Confirmation Sheets shall be incorporated as Addenda to this Agreement and the Parties agree to retain all such Addenda for the period required by applicable law. Copies of Rate Confirmation Sheets will remain on file with S LINE BROKERAGE.

16. Fixed Rates, if any, between the parties hereto are set forth on an APPENDIX "A" attached hereto. The Parties agree that the Fixed Rates may be amended and/or modified based upon then current market conditions. The Rate Confirmation Sheets as referenced herein shall be deemed to amend and/or modify said Fixed Rates for the shipment(s) to which such Rate Confirmation Sheets pertain.

17. Any claim for overpayment or underpayment of transportation charges in connection with Cargo shipments transported under this Agreement, shall be presented by the Party asserting the claim to the other Party within thirty (30) days of discovery of the claim by that Party, but in no event will any such claim be asserted more than ninety (90) days after the delivery of the Cargo/shipment(s) giving rise to any such claim.

CARRIER'S SERVICE WARRANTIES

18. All Freight/Cargo transported by CARRIER pursuant to this Agreement shall only be transported by CARRIER on, in, or with equipment owned by CARRIER or leased to CARRIER under a lease having durations of more than thirty (30) days operating under CARRIER's operating authorities. CARRIER will not authorize and/or permit its Tractor(s) and Trailer(s) to be unattended at any time from and after the time the Freight/Cargo is loaded upon CARRIER's equipment at point of origin until said Freight/Cargo is delivered to the designated consignee at destination or to any intermediate stop off point.

19. CARRIER shall not, in any matter, sub-contract, broker, or tender to any third party for transportation any Freight tendered to CARRIER by S LINE BROKERAGE and/or S LINE BROKERAGE's customers for transportation pursuant to this Agreement.

20. CARRIER shall use such forms and keep such records of shipments as S LINE BROKERAGE shall reasonably prescribe.

21. CARRIER's rates and tariffs as a Motor Common Carrier shall not, except as may be specifically provided in this Agreement, be applicable to any transportation which it shall perform for and on behalf of S LINE BROKERAGE's customers.

22. CARRIER shall, at all times, have an USDOT Safety Rating that is satisfactory, and at no time will allow its safety rating to become unsatisfactory. CARRIER shall immediately notify S LINE BROKERAGE in the event its Safety Rating becomes unsatisfactory. S LINE BROKERAGE shall have the right to immediately terminate this Agreement if CARRIER'S Safety Rating becomes unsatisfactory without any additional notice or right to cure otherwise set forth in this Agreement.

23. CARRIER represents and warrants that the driver(s) utilized in providing CARRIER's services under this Agreement will be competent and properly licensed, and fully informed of their responsibilities for the protection and care of the involved commodities. Neither S LINE BROKERAGE, nor S LINE BROKERAGE's customers, will be responsible for paying any driver's salary, wages, compensation, or charges, or for Workers' Compensation coverage, or any taxes based on salary, wages, or compensation; any and all such payments shall be the sole responsibility of CARRIER. CARRIER will exclusively provide and maintain the necessary equipment to perform its Transportation Services under this Agreement and will provide and pay for all fuel and expenses necessary to operate the equipment; neither S LINE BROKERAGE nor S LINE BROKERAGE's customer will be responsible for the quality of maintenance or any of those expenses except to the extent that it is set forth in the Compensation/Settlement Sheet. CARRIER represents that the services it furnishes under this Agreement will be performed without violating local, state, or federal laws or regulations, and that CARRIER has complied with and will comply with all laws and regulations of local, state, and federal authorities and regulatory bodies having jurisdiction over the operation of the vehicles used in the performance of the Transportation Services. CARRIER further warrants that all motor vehicle equipment provided by CARRIER for the transportation of food grade products will comply with the requirements of the Sanitary Food Transportation Act and the Food Safety Modernization Act, and that none of the equipment provided for the transportation of food, food grade products or cosmetics has been or will be used for the transportation of any type of waste of any kind, garbage, hazardous materials, or any other commodity that might adulterate or contaminate food, food products or cosmetics.

24. At the time each shipment is received by CARRIER from S LINE BROKERAGE and/or S LINE BROKERAGE's customer(s), CARRIER will request and obtain instructions concerning all handling, securing, and protection of product requirements of each shipment, including specifications noted on the bill of lading or otherwise. CARRIER is solely responsible for ensuring that all Freight is properly blocked and braced for transportation unless tendered to CARRIER in a pre-loaded, sealed trailer and CARRIER is instructed not to break the seal(s) on the trailer, which fact and instruction must be noted on Bill of Lading. CARRIER is responsible for determining that the Goods being shipped are in apparent good order and condition, to the extent that such is ascertainable through a visual examination of the exterior of the Goods shipped, before loading and, in the event that they are not CARRIER will contact S LINE BROKERAGE for further instructions prior to loading and/or shipping the Goods.

RELATIONSHIP OF S LINE BROKERAGE TO CARRIER

25. It is understood and agreed that it is the intention of the Parties that the relationship of CARRIER to S LINE BROKERAGE shall be that of an Independent Contractor and that the sole purpose of this Agreement is to establish the terms upon which CARRIER will execute this Agreement, and that CARRIER is not the agent, employee, subcontractor or representative of S LINE BROKERAGE for any purpose.

26. CARRIER agrees that CARRIER has exclusive responsibility for its drivers, drivers' helpers, agents, contractors, subcontractors, employees, representatives and/or other workers ("Personnel") and exclusive control over payment of any salaries, wages, fines, compensation, hours, working or subsistence of its Personnel. CARRIER is also solely responsible for any resulting expenses of any nature incurred from the use of the persons and equipment used to perform the Transportation Services. As such, CARRIER agrees that S LINE BROKERAGEs has no responsibility whatsoever to CARRIER for any of the abovementioned Personnel or activities.

27. CARRIER agrees that its Personnel are not eligible for any employee benefits available to employees of S LINE BROKERAGE.

LAWFUL CHARGES – CREDIT – C.O.D.

28. Neither CARRIER nor any person or entity employed or utilized by CARRIER in the performance CARRIER's duties under this Agreement shall have any authority to accept less than the full freight charges due to S LINE BROKERAGE from the consignees, nor to accept less than prescribed C.O.D. charges due to the shipper.

29. In the event a shipment is paid "C.O.D.," the following terms shall govern: Any shipment to be paid for by check shall be by cashier's check. Unless S LINE BROKERAGE shall expressly authorize CARRIER in writing to the contrary, CARRIER shall not extend credit to the consignees

for freight charges or C.O.D. charges or accept personal or company checks from the consignee in payment of same, and if CARRIER does any of the acts delineated herein, said acts shall be at the sole risk of CARRIER.

30. All monies received by CARRIER, or any person utilized by CARRIER in the performance of CARRIER's services under this Agreement, for C.O.D. transportation charges are the property of S LINE BROKERAGE, and C.O.D. charges for cargo/product are the property of S LINE BROKERAGE and/or S LINE BROKERAGE's customers as may be designated by S LINE BROKERAGE. CARRIER and other persons utilized by CARRIER in the performance of CARRIER's services under this Agreement shall hold such monies in trust for S LINE BROKERAGE and/or S LINE BROKERAGE's customers and shall remit the same as instructed by S LINE BROKERAGE immediately upon receipt thereof.

31. Neither CARRIER nor any other person utilized by CARRIER in the performance of CARRIER's services under, has or shall have any authority to execute or endorse any negotiable instrument for or on behalf of S LINE BROKERAGE and/or S LINE BROKERAGE's customers.

NONSOLICITATION OF S LINE BROKERAGE'S CUSTOMERS

32. During the effective dates of this Agreement, and for a period of one (1) year from and after CARRIER's last day of transporting any Cargo for S LINE BROKERAGE, CARRIER will not, without the prior written consent of S LINE BROKERAGE, call on, solicit or take away any of S LINE BROKERAGE's customers, as to any shipping of a type and in the states for which S LINE BROKERAGE provides shipping for the respective customers Should CARRIER directly do business with any of S LINE BROKERAGE's customers during the effective dates of this Agreement and/or within one (1) year after the termination of this Agreement in violation of the foregoing provisions of this Paragraph, CARRIER will pay to S LINE BROKERAGE commission/rate of twenty percent (20%) of all gross freight charges received by CARRIER as to any and all such shipments of Freight/Cargo which are in violation of this paragraph.

CONFIDENTIALITY

33. CARRIER shall not, without the prior written consent of S LINE BROKERAGE, use for CARRIER's own benefit or purposes or for the benefit or purposes of any other person, firm, partnership, association, or corporation or other business organization, entity or enterprise, or disclose (except in, and to the extent necessary for, the performance of its duties under this Agreement) in any manner to any person, firm, partnership, association, or corporation or other business organization, entity or enterprise, any trade secrets, information, data, know-how or knowledge (including, but not limited to, that relating to costs, freight rates, freight discounts, pricing and marketing methods) belonging to or relating to the affairs of S LINE BROKERAGE, except to the extent otherwise required by law. Upon termination of this Agreement, CARRIER will return to S LINE BROKERAGE any written proprietary or confidential information of S

LINE BROKERAGE which is in CARRIER's possession, custody, or control, and CARRIER will delete or destroy any other proprietary or confidential information of S LINE BROKERAGE which is in CARRIER's possession, custody, or control, including, without limitation, any S LINE BROKERAGE customer lists whether or not identified as proprietary or confidential.

GENERAL INDEMNITY

34. CARRIER covenants and agrees to fully defend, protect, indemnify and hold harmless S LINE BROKERAGE, S LINE BROKERAGE's owners, directors, officers, employees and agents, and S LINE BROKERAGE's customers, from and against each and every claim, demand or cause of action and from any and all damage, loss, liability fees, costs, and expense (including, but not limited to, attorneys' fees and expenses incurred in defense of S LINE BROKERAGE, S LINE BROKERAGE's owners, directors, officers, employees and agents and/or S LINE BROKERAGE's customers) which may be made or asserted by CARRIER, CARRIER's drivers, drivers' helpers, agents, subcontractors, employees, or other workers and/or third parties (including, but not limited to, S LINE BROKERAGE's agents, servants, employees and/or customers) and/or which may be incurred by S LINE BROKERAGE, S LINE BROKERAGE's owners, directors, officers, employees and agents, and/or S LINE BROKERAGE's customers, resulting from:

- (1) Injury to death of persons, loss or destruction of or damage or delay to Freight or other property, including the conversion thereof, caused by, or resulting in any manner from, any acts or omissions, intentional, reckless, negligent or otherwise, of CARRIER or any of CARRIER's drivers, drivers' helpers, agents, subcontractors, employees or other workers, in performing or failing to perform or otherwise arising out of or in connection with any of the services or duties of CARRIER to be performed under this Agreement;
- (2) The making or issuance of any false or fraudulent bills of lading, freight bills, manifest or the giving or receiving of any false or fraudulent receipts for any Freight or Freight charges by CARRIER or by any of CARRIER's drivers, drivers' helpers, agents, subcontractors, employees and/or other workers;
- (3) Theft or embezzlement on the part of CARRIER and/or CARRIER's drivers, drivers' helpers, agents, subcontractors, employees and/or other workers, including, without limitation, non-payment to S LINE BROKERAGE or S LINE BROKERAGE's customer(s) of any payment(s) given to CARRIER and/or CARRIER's drivers, drivers' helpers, agents, subcontractors, employees and/or other workers, which are supposed to be paid to S LINE BROKERAGE and/or S LINE BROKERAGE's customer(s) and/or the unauthorized failure to obtain full payment in compliance with this Agreement of monies which are supposed to be paid to S LINE BROKERAGE or S LINE BROKERAGE's customer(s) upon delivery of the Goods.

RESPONSIBILITY FOR PAYMENT OF RATES

35. S LINE BROKERAGE shall be solely liable for and responsible to CARRIER for its freight charges arising out of this Agreement. Within fifteen to thirty (15-30) days after S LINE BROKERAGE's receipt of a clear delivery receipt, S LINE BROKERAGE agrees to pay to CARRIER the contract rate and charges. S LINE BROKERAGE's customers shall have no obligation to pay CARRIER for shipping done pursuant to this Agreement; rather, any payment to be made by S LINE BROKERAGE's customers with regard to the payment of transportation charges shall be made to S LINE BROKERAGE.

36. CARRIER appoints and designates S LINE BROKERAGE as its agent for the purpose of billing and collection of freight charges from S LINE BROKERAGE's customers for which S LINE BROKERAGE arranges the transport by CARRIER of Freight/Cargo.

37. CARRIER shall not communicate in any manner, directly or indirectly, with S LINE BROKERAGE's customers, consignors, consignees, or any party other than S LINE BROKERAGE concerning the collection of any charges relating to transportation services accruing in connection with or as a consequence of this Agreement except to request payment at the time of delivery for the Goods/shipment.

38. CARRIER waives any right it may otherwise have to proceed or commence any action against S LINE BROKERAGE's customers for the collection of any freight bills arising out of transportation services performed by CARRIER under this Agreement.

39. S LINE BROKERAGE shall have a lien on the Freight if and to the extent provided by law and/or by agreement with S LINE BROKERAGE's customers for shipping such Freight. CARRIER shall have no lien, and hereby expressly waives its right to any lien (contractual, statutory, or otherwise), on any Cargo, Freight, or other property of S LINE BROKERAGE and/or S LINE BROKERAGE's customers.

40. Compensation paid to CARRIER under this Agreement may be withheld in whole or in part by S LINE BROKERAGE or any of its subsidiaries or related companies to satisfy claims or shortages arising out of this or other Agreements, or to satisfy advances made to, or on behalf of, CARRIER, or to satisfy any debt owed by CARRIER to S LINE BROKERAGE or any of its subsidiaries or related companies. This offset may occur, at S LINE BROKERAGE's discretion, only if the claim or debt has been acknowledged in writing by CARRIER within thirty (30) days of presentation or the claim has not either been paid or denied for a valid cause of reason within ninety (90) days of presentation.

ASSIGNMENT

Initials Carrier Representative: _____

41. This Agreement and the rights, duties or obligations of a Party thereunder may not be sold, assigned, or transferred without the prior written consent of the other Party, except as required by law. Notwithstanding the foregoing, this Agreement shall be binding upon and shall inure to the benefit of the respective legal representatives, successors, and successors-in-interest, of the Parties.

ENTIRE AGREEMENT

42. This Agreement constitutes the entire understanding and agreement of the Parties with respect to its subject matter. Neither Party has relied upon any representations made by or on behalf of the Party in entering into this Agreement. This Agreement merges and supersedes all previous oral and written discussions, negotiations, representations, understandings, and agreements, between the Parties with respect to the subject matter thereof and supersedes and replaces any and every other such oral or written understanding, representation, and agreement, heretofore had between the Parties as to such subject matter. Any modification or amendment of any provision of an Agreement must be in writing and bear the signature of the duly authorized representative of each Party.

WAIVER

43. No covenant, term or condition of this Agreement shall be deemed to have been waived unless such waiver is in writing and is signed by the party alleged to have made the waiver. Waiver of a covenant, term, or condition on one occasion shall not constitute a waiver of such covenant, term or condition on any other occasion or a waiver of any other covenant, term, or condition.

NOTICES

44. Except as otherwise provided in this Agreement, all notices required by this Agreement, including, without limitation, notice of termination of the Agreement, shall be in writing and delivered by personal delivery, by next business day delivery by Federal Express, UPS, or OHL, or by overnight United States mail with certified or registered delivery, to the party to whom it is directed, with delivery costs thereof fully paid. All delivery or mailing charges shall be paid in full by the sender. Notices shall be deemed to be received on the date of personal delivery; on the next business day following deposit with FedEx, UPS, OHL, or the United States Postal Service. Such notices shall be addressed and sent to the following addresses, which the respective recipients may change by giving written notice of that change to the other party:

If Sent to BROKER (S LINE BROKERAGE):

By Personal Delivery, U.S. Mail, or FedEx, UPS; or DHL:

S LINE BROKERAGE
9972 PHOENICIAN WAY
SACRAMENTO, CA 95829

If Sent to CARRIER:

Initials Carrier Representative: _____

Name: _____
Address: _____
City, State, Zip: _____
Attn: _____

Either Party may change its e-mailer other address or fax number for receipt of notices by giving notice thereof to the other Party in the manner set forth above.

ATTORNEYS' FEES AND COSTS

45. If any action at law or in equity is necessary to enforce or interpret the terms of this Agreement, the prevailing party shall be entitled to reasonable attorneys' fees, costs, and necessary disbursements in addition to any other relief to which it/he may be entitled. This provision shall be construed as applicable to the entire contract.

TERMINATION/CURE

46. This Agreement may be immediately terminated upon written notice given to a breaching Party by a non-breaching Party (a) upon material breach by the breaching Party, if the breach by its nature cannot be cured; or (b) if the breaching Party fails to cure any other material breach under the Agreement within five (5) days of written notice of such breach.

SURVIVAL

47. Upon termination of this Agreement as herein provided, neither party shall be under any further obligation to the other, except for those obligations specified in this Agreement to arise upon, or remain in effect beyond, the termination date or as otherwise necessary to fulfill the intent of the Parties based upon a fair reading of the Agreement, including, without limitation, the respective payment, liability, and indemnity provisions thereof.

NO PARTNERSHIP

48. Nothing in this Agreement is intended to, nor does it create any partnership, joint venture, or agency between the Parties. Neither Party will have any right or authority to assume, create or incur any liability or obligation of any kind against or in the name of the other Party.

ARBITRATION

49. The parties to this Agreement agree to arbitrate any and all disputes, claims, or controversies ("claims") they may have against each other, including their current and former agents, owners, officers, directors, or employees, which arise from this relationship. **THE**

Initials Carrier Representative: _____

PARTIES UNDERSTAND AND AGREE THAT THEY ARE WAIVING THEIR RIGHT TO BRING SUCH CLAIMS TO COURT, INCLUDING THE RIGHT TO A JURY TRIAL.

The arbitrator will issue a detailed written decision and award, resolving the dispute. The arbitrator's written opinion and award shall decide all issues submitted and set forth the legal principle(s) supporting each part of the opinion.

All claims and disputes arising under or relating to this Agreement are to be settled by binding arbitration in the state of California, county of Sacramento. The arbitration shall be conducted on a confidential basis pursuant to the Commercial Arbitration Rules of the American Arbitration Association. Any and all customers and clients of S LINE BROKERAGE are designated as Third-Party Beneficiaries, and therefore Carrier consents that any and all matters involving said Third-Party Beneficiaries shall be arbitrated pursuant to this arbitration clause. The decision of the arbitrator shall be made in writing and will be final, conclusive, and binding on the Parties. The prevailing Party in the arbitration proceeding shall be entitled to recover reasonable costs, including attorney's fees, as allowed by law, and determined by the arbitrator. Judgment may be entered on the arbitrator's decision in any court having jurisdiction. Any decision or award as a result of any such arbitration proceeding shall be in writing and shall provide an explanation for all conclusions of law and fact and shall include the assessment of costs, expenses, and reasonable attorneys' fees. Any such arbitration shall be conducted by an arbitrator experienced in Transportation Law and shall include a written record of the arbitration hearing. An award of arbitration may be confirmed in a court of competent jurisdiction.

By Initialing here, CARRIER agrees to this waiver by initialing here: _____.

The decision or award of the arbitrator shall be final and binding upon the parties. The arbitrator shall have the power to award any type of legal or equitable relief that would be available in a court of competent jurisdiction including, but not limited to attorneys' fees and punitive damages when such damages and fees are available under the applicable statute and/or judicial authority. Any arbitral award may be entered as a judgment or order in any court of competent jurisdiction. The parties agree that any relief or recovery to which they are entitled arising out of the business relationship or cessation thereof shall be limited to that awarded by the arbitrator.

CLASS AND COLLECTIVE ACTION WAIVER

50. The parties to this Agreement agree not to bring any disputes between each other on a collective or class basis; rather, the parties agree to bring such disputes in arbitration on an individual basis only. An arbitrator may not resolve any disputes concerning the enforceability or validity of this class and collective action waiver; only a court with proper jurisdiction may resolve such a dispute. If this class action waiver is held to be illegal for any reason, the parties agree that a court, and not an arbitrator, will hear any class or collective action.

By Initialing here, CARRIER agrees to this waiver by initialing here: _____

MISCELLANEOUS

Initials Carrier Representative: _____

51. Severability. If any provision of this Agreement is held by a court of competent jurisdiction or arbitrator pursuant to the Arbitration clause of this contract, to be invalid or unenforceable, the remaining provisions will nonetheless continue in full force and effect without being impaired or invalidated in any way. If any provision in this Agreement would otherwise be unenforceable due to its duration, geographic area and/or scope, then the maximum period, scope and/or geographic area legally permissible under such circumstances will be deemed to have been agreed upon by the parties and will be substituted in place of the period, scope or area stated herein.

52. Jurisdiction and Venue. Notwithstanding the parties' agreement to arbitrate disputes pursuant to paragraph 49, the parties agree that the exclusive jurisdiction and venue for any action arising under any Agreement will be located in Sacramento County, California.

53. Time of the Essence. Except as otherwise set forth in this Agreement, including any right to cure provisions and notice requirements thereto, time shall be of the essence for the Parties' performance of their respective obligations under this Agreement.

54. No Third-Party Beneficiaries. There are no third-party beneficiaries to this Agreement.

55. Construction. This Agreement shall be construed as a whole and in accordance with its fair meaning, and in accordance with the substantive laws of the State of California without regard to California's conflict of laws.

56. No Construction Against Drafter. Each Party acknowledges that it has had full opportunity to consult with an attorney regarding the terms of this Agreement, and to review and participate in the drafting of the final form of the Agreement. Accordingly, this Agreement and each provision herein shall be construed without regard to any presumption or other rule of construction whereby any ambiguities would be construed or interpreted against the party causing the document to be drafted.

Initials: _____

Initials: _____

57. When required by the context of this Agreement, masculine shall include the feminine, masculine, or feminine shall include the neuter, singular shall indicate the plural, and vice versa.

58. Headings. The headings and captions used in this Agreement are for the convenience of the parties only and not intended to describe or define the provisions in the portions of the Agreement to which they pertain.

59. This Agreement shall only become effective upon execution by all parties and delivery thereof to the other parties.

60. Counterparts. This Agreement may be executed in counterparts and each such counterpart shall be deemed an original executed Agreement. but all such counterparts shall constitute one and the same Agreement. Facsimile or scanned and delivered copies shall be deemed to be originals.

61. Authority. Each party has the full right and authority to enter into this Agreement and to consummate or cause to be consummated the transaction contemplated thereby. Each person signing on behalf of an entity represents that he or she is authorized to bind the party on whose behalf the signature is proffered.

62. Anti-Bribery/Negotiation of Rates. CARRIER and/or representatives of CARRIER shall not communicate in any manner, directly or indirectly, with Broker's (S LINE BROKERAGE's) customers, consignors, consignees, employees, or any party other than Broker's designated executive concerning the rates, routes, selection of routes, and collection of any charges relating to transportation services accruing in connection with or as consequence of this Agreement. Furthermore, Carrier and/or representative of Carrier will not induce, through the offer of money, gifts, services, etc., Broker's employees to provide preferential treatment in assignment of work/jobs.

IN WITNESS WHEREOF, each Party hereto has caused his, her, or its name to be subscribed and executed below as of the day and year first above written. If executed on behalf of an entity, the person signing on behalf of such entity acknowledges and represents that he or she is authorized to execute this Agreement on behalf of such entity and to thereby cause the entity to enter into this Agreement.

BROKER (S LINE BROKERAGE, INC.)

[_____ (CARRIER)]

By: _____
(Signature)

By: _____
(Signature)

Name:

Name:

Title: **CEO (?)**

Title:

Date: ____ / ____ /20__

Date: ____ / ____ /20__

Initials Carrier Representative: _____